

Satyendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2013 · Writ-C No. 66737 of 2013 · WRIT - C No. 66737 of 2013 · **Writ disposed; petitioner to apply to EE under cl. 6.14 for instalments.**

HEADNOTE

A consumer who does not dispute the billed amount but seeks instalments must apply under clause 6.14 of the Electricity Supply Code, 2005, which provides that facility for consumers in financial distress. The High Court will not itself grant instalments; the prescribed authority is to decide the request on the record within the time fixed.

FACTUAL SUMMARY

Satyendra Singh petitioned the Allahabad High Court against the State and Dakshinanchal Vidyut Vitran Nigam Limited over electricity dues at Firozabad. At the hearing his counsel conceded the amount and did not dispute liability, asking only that the Court grant an instalment facility. The Division Bench recorded that clause 6.14 of the Electricity Supply Code, 2005, provides instalment facility to consumers in financial distress, and directed the petitioner to approach the Executive Engineer (Prescribed Authority), Electricity Distribution Division, DVVNL, Firozabad, within ten days.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005, provides instalment facility to consumers in financial distress. Where the consumer does not dispute the amount and only seeks instalments, the proper course is to apply to the Executive Engineer (Prescribed Authority), who shall decide the request on the record; the High Court will not itself accord the facility. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Court treated cl. 6.14 as the proper channel for a consumer seeking instalments for financial distress, and remitted the request to the prescribed authority instead of granting instalments in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN FINANCIAL DISTRESS AND ENTITLED TO INSTALMENTS UNDER CLAUSE 6.14

Left to the Executive Engineer (Prescribed Authority), Electricity Distribution Division, DVVNL, Firozabad, to decide on the record within one month of production of the certified copy. ¶ 1